QRNot Digital Product Passport — Subscription and Services Agreement

> **DRAFT — LEGAL REVIEW REQUIRED.** Template prepared for SCE INNOVATION LTD. ŞTİ. for business customers (B2B). Fields in square brackets [ ] must be completed and the agreement reviewed by a lawyer before signing, particularly where the customer is established outside Türkiye.

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1. Parties

Provider ("QRNot"):

- SCE INNOVATION LTD. ŞTİ.
- Çetin Emeç Bulvarı 25/3, Çankaya, Ankara, Türkiye
- Tax no. [ ] · sce@scegrup.com · WhatsApp +90 543 392 92 30

Customer:

- [Company name], [address], [registration / VAT no.]
- Contact: [name, email, phone]

2. Definitions

- **Platform:** QRNot's Digital Product Passport (DPP) software provided at qrnot.com. Includes the company panel, public passport pages, the supplier data portal, JSON outputs and all related components.
- **Services:** Subscription access to the Platform and any additional services selected in the Order Form (data entry, training, label production, etc.).
- **Plan:** The subscription level defined by product-model limit, term and fee in the Order Form.
- **Product model:** Every non-archived passport record created in the panel. Serialised individual items are not product models.
- **Customer Data:** All information, documents and images entered into the Platform by the Customer and the persons it authorises (users, suppliers).
- **Published Passport:** A passport made public by the Customer's "Publish" action and stored as an immutable version.
- **Order Form:** Annex 1, stating the Plan, fees, term and additional services. Acceptance of a quotation by email also constitutes an Order Form.

3. Subject matter

This agreement governs QRNot's provision of the Platform on a subscription basis and of the additional services selected in the Order Form.

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4. Scope of the Services

1. Within its Plan, the Customer may use all Platform functions available at the date of this agreement:
    - Creating passports and publishing them in 8 languages.
    - Serial numbers and QR codes.
    - Supplier data portal.
    - Carbon estimate helper.
    - Document management, versioned publishing, authorised-access key.
    - GS1 Digital Link, CSV import, JSON output.
    - Team and role management.
2. Plan limits may not be exceeded. The Customer may upgrade at any time; the difference is invoiced pro rata for the remaining term.
3. QRNot may develop and improve the Platform. Removal of a core function actively used by the Customer will be notified at least 60 days in advance.
4. **Automatic translation** relies on a third-party AI service. Its uninterrupted availability is not guaranteed, and translations must be reviewed by the Customer before publishing.
5. The **carbon estimate helper** produces an approximate range based on published reference values. It is not a product-specific life cycle assessment (LCA) and is not a declaration.
6. Technical support is provided under Annex 2, the Support and Service Level Agreement.

5. Term and renewal

1. This agreement enters into force on signature. The subscription runs for the selected term (monthly or annual) from the start date in the Order Form.
2. It renews automatically for the same term at the then-current prices, unless either party gives written notice (email suffices) at least **30 days** before the end of the term.
3. The **Pilot** lasts 3 months and does not renew automatically. If the Customer moves to a paid Plan, the pilot fee is credited against the first invoice.

6. Fees, invoicing and payment

1. Fees are stated in euros (€) in the Order Form, exclusive of VAT and other applicable taxes. For customers outside Türkiye, invoices are issued in euros; the Customer bears its own bank charges.
2. Annual fees are invoiced in advance at the start of the term; monthly fees at the start of each month. Payment is due within **[14]** days of the invoice date.
3. If payment is overdue, QRNot will give written notice. If payment is not made within 15 days of that notice, QRNot may suspend panel access.
    - During suspension **Published Passports remain available**, and Customer Data is not deleted.
    - Statutory default interest for commercial transactions applies to overdue amounts.
4. QRNot may change its prices at most once a year, with at least **60 days'** notice before renewal. Prices for the current term do not change.
5. Additional services are invoiced as delivered, at the prices in the Order Form or in a separate quotation.
6. Fees paid are non-refundable, except as set out in clause 15.2.

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7. Customer obligations

1. **Regulatory compliance remains with the Customer.** The Customer is solely responsible for ensuring that the information it enters and publishes is accurate, up to date and compliant with applicable law (including the EU ESPR and its delegated acts, product-group rules and REACH). QRNot is not a certification body. Use of the Platform does not constitute approval or a guarantee of product compliance.
2. The Customer keeps user credentials confidential and shares the authorised-access key and supplier links only with authorised persons. It is responsible for actions taken by its users.
3. The Customer does not upload unlawful, infringing or malicious content, and avoids unnecessary personal data in the public sections of passports.
4. The Customer does not reverse-engineer or scrape the Platform, does not security-test it without written permission, and does not overload it.
5. The Customer reviews supplier information before copying it into a product. QRNot is not responsible for the accuracy of supplier declarations.

8. QRNot obligations

1. QRNot provides the Platform in line with the service levels in Annex 2.
2. QRNot processes Customer Data only to provide the Services and in accordance with Annex 3, the Data Processing Agreement.
3. QRNot applies reasonable technical and organisational security measures:
    - Encryption in transit, role-based access, per-company data isolation.
    - Audit logging of every change.
    - Daily backups.
    - Retention of deleted files for 30 days.
4. On written request, QRNot hands over Customer Data in machine-readable form (JSON / CSV and files).

9. Continuity of Published Passports

1. Published Passports may need to remain available while products are on the market. They are therefore **archived, not deleted**, and their QR / NFC address never changes.
2. Whatever the reason for termination, QRNot keeps Published Passports publicly available for **[12] months** after the end date. Panel access is closed during this period.
3. At the end of that period the Customer may choose one of the following:
    - **(a) Archive plan:** keep the passports online for [€] per year.
    - **(b) Migration:** guidance for migrating to the Customer's own infrastructure. Redirecting QR addresses to a new address is quoted separately, where technically possible.
    - **(c) Deletion:** subject to statutory retention obligations.

10. Intellectual property

1. All rights in the Platform's software, design, data model, documentation and trademarks belong to QRNot. The Customer receives a non-exclusive, non-transferable right to use the Platform during the subscription.

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2. All rights in Customer Data belong to the Customer. The Customer grants QRNot the right to process, host and publish that data only as needed to provide the Services.
3. QRNot may use the Customer's name and logo as a reference only with the Customer's written consent.
4. QRNot may use the Customer's improvement suggestions in the Platform without obligation.

11. Confidentiality

Each party keeps confidential, during the agreement and for **3 years** after it ends, the information it receives that is evidently confidential: prices, supplier information, trade secrets and unreleased Platform features. Public information, legal obligations and requests from authorities are excluded.

12. Data protection

Personal data within Customer Data is processed under **Annex 3, the Data Processing Agreement (GDPR / KVKK)**. Because the Platform infrastructure is located in the USA, international transfer terms (Standard Contractual Clauses) are set out in Annex 3.

13. Warranty

1. QRNot will provide the Platform with due care and in line with the service levels in Annex 2.
2. Beyond that, QRNot does not warrant:
   - that the Platform is fit for a particular purpose;
   - that it will be uninterrupted or error-free;
   - that it will meet all future technical requirements of EU law.
3. QRNot will use commercially reasonable efforts to update the data model within a reasonable time as EU technical standards and product-group rules are finalised.

14. Limitation of liability

1. Each party's total liability under this agreement is limited to the **fees paid by the Customer to QRNot in the 12 months** preceding the event giving rise to the claim.
2. Neither party is liable for indirect or consequential loss, loss of profit, loss of reputation or loss of data. Data that can be restored from backup is not lost data.
3. These limitations do not apply to:
   - intent or gross negligence;
   - breach of confidentiality or data protection obligations;
   - payment obligations.

15. Termination

1. **Termination for cause.** Either party may terminate by written notice if the other party materially breaches this agreement and fails to remedy the breach within **30 days** of written notice.
2. **Breach by QRNot.** If the Customer terminates because of QRNot's material breach, prepaid fees for the unused period are refunded.

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3. **Insolvency.** Either party may terminate by notice if the other becomes subject to insolvency, composition or liquidation proceedings.
4. **Effects of termination:**
    - Panel access ends.
    - Clause 9 applies.
    - The Customer may request delivery of its data within **60 days**.
    - Unpaid fees become due.

16. Force majeure

Obligations are suspended for the duration of events beyond a party's control:

- Natural disasters, epidemics, war, terrorism.
- General internet or power outages.
- Orders of authorities.
- Widespread outages of infrastructure providers.

If force majeure lasts more than 60 days, either party may terminate by notice.

17. Assignment

The Customer may not assign this agreement without QRNot's written consent. QRNot may assign it to a successor in a merger or transfer of business, by notifying the Customer.

18. Notices

1. Notices are sent to the email addresses in clause 1.
2. An email notice is deemed received on the business day it is sent.
3. Termination and default notices may also be sent by registered mail.

19. Governing law and disputes

1. This agreement is governed by **[Turkish law]**.
2. Disputes are settled by the **[courts of Ankara, Türkiye]**, or, if the parties so agree in the Order Form, by arbitration under the **[Istanbul Arbitration Centre (ISTAC)]** rules in English, seated in Istanbul.
3. The parties accept the Platform's audit logs, system records and email correspondence as evidence.

20. Miscellaneous

1. This agreement and its annexes form the entire agreement between the parties. Amendments must be in writing.
2. If any provision is invalid, the remaining provisions are unaffected.
3. Any stamp duty arising in Türkiye is borne equally by the parties.
4. Annexes:
    - **Annex 1:** Order Form

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- **Annex 2:** Support and Service Level Agreement
- **Annex 3:** Data Processing Agreement (GDPR / KVKK)

QRNot — SCE INNOVATION LTD. ŞTİ. · Name / Title / Signature / Date

Customer · Name / Title / Signature / Date

Annex 1 — Order Form

Item	Value
Plan	☐ Pilot (10) · ☐ Starter (50) · ☐ Growth (200) · ☐ Business (500) · ☐ Enterprise ([ ])
Product-model limit	[ ]
Billing	☐ Annual · ☐ Monthly
Subscription fee (excl. VAT)	€ [ ] / [month / year]
Discount	[ ] % — reason: [founding customer / partner / other]
Start date	[ ]
End of first term	[ ]
Additional services	☐ Data entry: [ ] models × €20 · ☐ CSV/ERP template: €250 · ☐ Training: [ ] h × €60 · ☐ QR/NFC labels: quote [ ] · ☐ Other: [ ]
Pilot fee credit	☐ Yes: € [ ]
Hosting	☐ Standard (USA) · ☐ EU region (Enterprise / quote)
Dispute resolution	☐ Ankara courts · ☐ ISTAC arbitration
Customer technical contact	[ ]
Invoice email	[ ]

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